

lighting at the Intersection [UMF # 21-25;⁴ COE, Ex. 6, nos. 41-42]; City was responsible for the maintenance, inspection, and repair of the streetlights at the Intersection [UMF ## 28, 37-38, 43-45]; City had the sole authority and discretion to modify and/or repair the lighting at the Intersection [UMF # 29]; City had full responsibility for ensuring the proper functioning of the lighting at the Intersection [UMF # 31]; and the design and installation of all streetlights at or near the Intersection was done by the original developer of the area, and the change of the streetlights to LED lights was done by a third-party and occurred after the accident [UMF ## 27, 42]. This evidence is sufficient to establish that Design Services had no duties and performed no services related to the sufficiency of the lighting at the Intersection, which is the only issue raised by Plaintiffs. (See, Rico-Zuber Decl., Ex. C, nos. 36-46, 48-53, Ex. E, p. 9.) As Plaintiffs' claims do not arise out of or relate to any "services, work, activities, operations or duties" provided by Design Services under the Consultancy Agreement, Design Services has established that it has no duty to defend or indemnify City against Plaintiffs' claims. City has presented no evidence to the contrary, so Design Services' motion is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203266	HARB VS COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: See Above.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2203266	HARB VS COUNTY OF RIVERSIDE	MOTION TO BIFURCATE

Tentative Ruling: Deferred for Trial Judge.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2406268	OLMEDO VS CORONANDO	PETITION RE: ARBITRATION AWARD

Tentative Ruling: Granted.

⁴ While City states that this fact is disputed, City did, in fact, admit it in discovery. (See, COE, Ex. 6, nos. 41-42.) Additionally, the evidence cited as support for the dispute is only Plaintiffs' discovery responses, in which Plaintiffs claim that one of the factors contributing to the dangerous condition at the Intersection was that "the corner where the subject incident occurred had insufficient lighting on the roadway," and the "lights were not properly working in the area and had not been changed and/or repaired." (Rico-Zuber Decl., Ex. C, nos. 36-46, 48-53, Ex. E, p. 9.) This evidence in no way disputes City's admission that Design Services was not responsible for determining or ensuring the sufficiency of the lighting at the Intersection.